

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY  
OF THE CITY OF CHEYENNE**  
Office of City Clerk

March 22, 2010

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS: Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Spiker and Mr. Valdez. Absent: Ms. Case, Mr. Pierson and Dr. Rinne. Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney. Mayor Kaysen recognized members of Boy Scout Troop 216 who led the pledge of allegiance.

Ms. Broyles recognized Lisa Scholz, Executive Director, Cheyenne-Laramie County Methamphetamine Initiative and expressed appreciation to the Meth Initiative Committee members. She provided a brief history of the establishment of the meth initiative, how the program has benefitted the community through the Meth Resource Center and specifically noted Ms. Scholz' efforts in educating the public on the dangers of using methamphetamine. Ms. Broyles advised the meth initiative program will continue on a voluntary basis by interested members of the community.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Ms. Ash, and pursuant to support received by Mr. Collins and Mr. Spiker, agenda item #34(a) was removed from the Consent Agenda. Mr. Collins moved to approve remaining Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on March 8, 2010. Motion (per Consent Agenda) carried.

[CA] Minutes from Vouchers Meeting of the Governing Body on March 15, 2010. Motion (per Consent Agenda) carried.

Mr. Brown moved to approve payment of vouchers as presented, seconded by Mr. Spiker. Upon inquiry, City Clerk Carol Intlekofer explained several business license fee refunds were included in the voucher listing involving overpayments. Upon further inquiry, City Treasurer Barb Dorr, Parks and Recreation Asst. Director Todd Feezer and Engineering Services Director Nathan Beauheim provided information available for a voucher payable to BOPU (\$2,140.88) for water tap fees at the David Romero Youth Activity Center. Mr. Spiker moved to remove the BOPU voucher for payment until further clarification could be provided, seconded by Mr. Collins. Motion carried. Voting "yes" - all members of the governing body present. Upon inquiry regarding a voucher payable to Meridan Fire & Security (\$805), Fire Chief Guy Cameron advised services involved repair of the fire system panel located at the Fire Training Facility. Motion to approve remaining vouchers carried. Voting "yes" – all members of the governing body present.

Mayor Kaysen opened a public hearing to receive input and comments for a restaurant liquor license application filed with the City Clerk's Office for Maria Ramos d/b/a El Charrito Mexican Grill, 216 E 17<sup>th</sup> Street, Cheyenne, WY. There being no comments and purpose of the hearing having been met, Mayor Kaysen closed the hearing and referred the item to Finance Committee.

Mayor Kaysen opened a public meeting to receive input and comments for the purpose of amending Resolution No. 4859 pertaining to 2007-2010 Optional One Percent Sales Tax Funding due to a projected shortfall in collections. Vicki Nemecek, Assistant Director, Public Works, advised an anticipated revenue shortfall of 5<sup>th</sup> penny sales tax has necessitated a review of the recommended distribution of funds and reported sales tax collections were estimated to fall \$4,999,500 short of the projected \$45,000,000 original estimate. She reviewed the status of projects and proposed re-allocation of funds in various areas. Mayor Kaysen advised an affiliated agenda item (Resolution Amending Resolution No. 4859) would be reviewed at the Monday, April 5, 2010 (11:00 a.m.) Finance Committee meeting. Frank Cole spoke in opposition to reduction in street maintenance and construction (repair) projects, particularly regarding snow removal. Connie Sloan-Cathcart, Director, United Way of Laramie County, clarified 23 human resources agencies will be affected by the proposed cuts in funding. There being no further comments or discussion and purpose of the meeting having been met, Mayor Kaysen closed the public meeting.

"An Ordinance annexing to the City of Cheyenne, Wyoming, a parcel of land being situated in the SW¼ NW¼ of Section 21, T.14N., R.66W., of the 6<sup>th</sup> P.M., Laramie County, Wyoming (located south of Plain View Road, west of Point Bluff, and north of Apache Street). Reporting for Public Services Committee, Ms. Ash moved to approve on third and final reading, seconded by Mr. Collins. Motion carried. Voting "yes" – all members of the governing body present. (#3885)

"An Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne City map of the Cheyenne City Code, by changing the zoning classification from MR-1 Medium Density Residential Established District to PUD Planned Unit Development District for Lot 1, Original City Block 140, Refinement A, Cheyenne, Wyoming (located at the northwest corner of the intersection of E. 24<sup>th</sup> Street and Warren Avenue)." Brad Emmons, AVI representative, reviewed concerns that were discussed at the Public Services Committee meeting with regard to construction work hours, construction parking, clean-up of streets during construction, and access to the construction area which will be located off of 25<sup>th</sup> Street. Ms. Ash moved to approve on second reading with staff recommendation #1, seconded by Mr. Collins. Concerns were expressed regarding the effect of construction work times and parking involving the neighborhood, replacement of trees and building design standards. Motion carried. Voting "yes" – all members of the governing body present.

"An Ordinance amending a portion of the City of Cheyenne's Sanitation Fee Schedule to add monthly recycle dumpster service fees for apartments, multiplex dwellings, trailer courts and optional commercial container service fees." Reporting for Finance Committee, Mr. Brown moved to approve on second reading, seconded by Ms. Broyles. Mr. Brown moved to amend by substitute, seconded by Ms. Broyles. It was advised the proposed substitute involves language clarification regarding commercial collection fees. Motion to amend carried. Voting "yes" – all members of the governing body present. Main motion as amended by substitute carried. Voting "yes" – all members of the governing body present.

"An Ordinance amending Chapter 5.12, Alcoholic Beverages, Section 5.12.060, Sales and Consumption - Restrictions, of Title 5, Business Licenses and Regulations, of the Cheyenne City

Code pertaining to the David R. Romero South Cheyenne Community Park.” Mr. Brown moved to approve on second reading, seconded by Mr. Valdez. Motion carried. Voting “yes” – all members of the governing body present.

An Ordinance annexing to the City of Cheyenne, Wyoming, a parcel of land being situated in Sections 12 and 13, Township 13 North, Range 67 West of the 6<sup>th</sup> Principal Meridian, Laramie County, Wyoming (located East of Southwest Drive, South of Interstate 80, West of BNSF Railroad, and North of Woodenshoe Drive) – referred to Public Services Committee (due to postponement from Feb. 22, 2010).

[CA] “Resolution to amend the City of Cheyenne Annual Action Plan for Fiscal Year 2009-2010 and reallocate funding for three Community Development Block Grant (CDBG) Projects.” Motion (per Consent Agenda) carried. (#5189)

[CA] “A Resolution approving the City of Cheyenne’s Analysis of Impediments to Fair Housing Choice prepared by the Housing and Community Development Office.” Motion (per Consent Agenda) carried. (#5190)

[CA] “A Resolution Amending Resolution No. 5183 authorizing the Mayor to offer financial incentives to induce certain eligible employees to retire from city service during Fiscal Year 2009-2010.” Motion (per Consent Agenda) carried. (#5191)

“A Resolution authorizing the Mayor to offer retirement financial incentives to members of the bargaining unit of Cheyenne Firefighters Local Union No. 279, International Association of Firefighters.” Jon Narva, President, Firefighters Local Union No. 279, and firefighters Bill Hinz, and T. J. Haws, spoke in favor of the resolution, advising the proposed financial concessions would save the city money, assist with reducing potential furlough days and reductions in work force, and reflect support for other City non-union employees. Mr. Brown advised there was no recommendation from the Finance Committee. There being no motion offered to adopt, the resolution died due to lack of a motion. Under other City business it was questioned whether there was a connection between the retirement financial incentives and recent re-negotiation involving the Firefighters contract. Upon inquiry, Mr. Narva advised the funding for the financial incentives was contingent upon City Council approval and was not related to re-negotiation of certain areas of the Union contract with the City. Upon inquiry regarding whether the City would incur any savings had the resolution been approved, Fire Chief Guy Cameron reviewed the voluntary Union contract re-negotiation process initiated by City administration in light of the economy and reduced revenues the City would be receiving from the state level, and components of topics involved in discussions relative to cost savings (i.e. manpower levels, elimination of City’s contribution to deferred compensation program and reduction of City’s contribution to pension, uniform allowance reduction, medical examination costs, etc.). He stated calculations involving the resolution and retirement financial incentives would result in minimal savings to the City. Ms. Broyles clarified, pursuant to a previous comment she had made during discussions on potential employee furlough days, that if any furlough days were necessary as a cost savings measure that she would take a proportionate cut in compensation relative to the reduced pay employees would receive.

[CA] “A Resolution authorizing the City of Cheyenne, Wyoming, to lease, with an option to purchase, certain equipment for the Sanitation, Recycling and Landfill Divisions.” Motion (per Consent Agenda) carried. (#5192)

[CA] “A Resolution approving Temporary Water Service, by User’s Agreement, between the City of Cheyenne, Board of Public Utilities, and Suncor Energy USA Pipeline Company.” Motion (per Consent Agenda) carried. (#5193)

[CA] “A Resolution repealing Resolution No. 4378; creating a new Resolution establishing fees and damage/cleaning deposits for use of the City of Cheyenne/Kiwanis Community House.” Motion (per Consent Agenda) carried. (#5194)

[CA] “A Resolution establishing fees and damage/cleaning deposits for use of the Community Center, located at David R. Romero South Cheyenne Community Park.” Motion (per Consent Agenda) carried. (#5195)

“A Resolution repealing Resolution No. 4888 and creating a new Resolution establishing fees for use of rental shelters in the following parks: Holliday Park, Lions Park, Mylar Park, Sun Valley Park and Pointe Park.” Mr. Brown moved to adopt, seconded by Mr. Valdez. Mr. Brown moved to amend by substitute to include David R. Romero South Cheyenne Community Park, seconded by Mr. Collins. Motion to amend carried. Voting “yes” – all members of the governing body present. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body present. (#5196)

“A Resolution authorizing submission of a Federal Mineral Royalty Capital Construction Account Grant (Chapter 28) application to the State Loan and Investment Board on behalf of the Governing Body for the City of Cheyenne for the purpose of purchasing a construction and demolition recycling material processing system” -- referred to Finance Committee (sponsor - Mr. Collins). Mr. Brown advised the item was discussed under other items for the agenda at the Finance Committee meeting and that provisions of Title 2, City Code, had been met. Mr. Brown moved to adopt, seconded by Mr. Spiker. Motion carried. Voting “yes” – all members of the governing body present. (#5197)

[CA] “A Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Original City Block 140, Refinement A, a replat of Lots 1-8, Block 140, Original City, Cheyenne, Wyoming (located at the northwest corner of the intersection of E. 24th Street and Warren Avenue)” -- referred to Public Services Committee (sponsor - Ms. Ash).

[CA] “A Resolution amending Resolution 4859 due to a shortfall in projected collection of the Optional One Percent Sales Tax for calendar years 2007 through 2010” -- referred to Finance Committee (sponsor - Mr. Collins).

[CA] “A Resolution authorizing the transfer of funds in the approximate amount of \$400,000.00 from the City’s Solid Waste Management Fund to the General Fund” -- referred to Finance Committee (sponsors - Ms. Broyles and Mr. Pierson).

[CA] “A Resolution amending Resolution No. 2852 establishing a payment schedule for Stage II of the Cheyenne Water Project” -- referred to Finance Committee (sponsors - Ms. Broyles and Mr. Pierson).

[CA] “A Resolution authorizing submission of a Mineral Royalty Capital Construction Account Grant (Chapter 3) application to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne for the purpose of Building the East Pershing Boulevard Reconstruction Project” -- referred to Finance Committee (sponsors - Mr. Brown, Ms. Broyles and Mr. Pierson.).

[CA] “A Resolution authorizing submission of a Mineral Royalty Capital Construction Account Grant (Chapter 3) application to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne for the purpose of Purchasing a Fire Engine for Station #3” -- referred to Finance Committee (sponsors - Mr. Brown, Ms. Broyles and Mr. Pierson).

[CA] “A Resolution authorizing submission of a Mineral Royalty Capital Construction Account Grant (Chapter 3) application to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne for the purpose of Rehabilitating Westland Road” -- referred to Finance Committee (sponsor - Ms. Broyles).

[CA] “A Resolution prioritizing the City of Cheyenne's three grant applications to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne for Mineral Royalty Capital Construction Account (Chapter 3) Funds” -- referred to Finance Committee (sponsor - Ms. Broyles).

Memorandum of Understanding between the City of Cheyenne, and Cheyenne Frontier Days, to outline responsibilities during the 2010 Cheyenne Frontier Days celebration (Lake Absaracca and Lions Park areas). Mr. Brown moved to approve, seconded by Mr. Valdez. Mr. Brown moved to amend the signature line for Cheyenne Frontier Days by removing “CEO” and replacing it with “General Chairman”, seconded by Mr. Valdez. Motion to amend carried. Voting “yes” – all members of the governing body present. Main motion as amended carried. Voting “yes” – all members of the governing body present. (#5525)

[CA] Grant Agreement between the Wyoming Business Council, Business and Industry Division, State Energy Office, and the City of Cheyenne, to provide State Energy Office - American Recovery and Reinvestment Act (ARRA) funds to the City of Cheyenne. Motion (per Consent Agenda) carried. (#5526)

[CA] Agreement between the City of Cheyenne and Josh Cossitt, to provide tennis services and instruction for the 2010 season -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Patrick Swafford, to provide tennis services and instruction for the 2010 season -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne and Sanborn, Colorado Springs, CO for High Resolution Aerial Photography -- referred to Finance Committee.

Contract Modification No. 2 to Contract No. 5045 between the City of Cheyenne and J-R Engineering, LLC for design of the 2009 Cheyenne Transit Program Bus Stop Upgrades Project (Federal Transit Authority/American Reinvestment and Recovery Act). Mr. Brown moved to approve in an amount not to exceed \$9,700.00, seconded by Mr. Valdez. Upon inquiry, Joe Dougherty, Director of Transit, clarified three new proposed bus stop locations for Frontier Mall, Target and Stinson/Lincolnway were being eliminated due to right-of-way (ROW)/acquisition complications, and noted these stops would be maintained at their current locations. He explained the funding from the three eliminated stops will provide funding for 10-12 additional shelters without ROW acquisition requirements. Motion carried. Voting “yes” – all members of the governing body present. (#5045)

[CA] Consideration of Bid #M-14-10 for a contract between the City of Cheyenne and Naranjo Civil Constructors, Inc., of Greeley, CO for the 17<sup>th</sup> Street Parking Lot Project (State Loan and Investment Board) -- referred to Finance Committee.

Appointment of Lane Pilbin to the International Fire Code Board of Appeals; Terry Livingston to the Greenway Advisory Committee; Cindy Pomeroy to the Police Civil Service Commission; and Rita Watson and Rick Schum to the Personnel Commission. Mr. Collins moved to approve, seconded by Mr. Spiker. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

Under other City business, Frank Cole commented on unsightly recycling/trash containers on City streets and suggested an analysis on the placement of the containers be conducted relative to beautification efforts, noting some residents have no option for a container storage site.

In the absence of Ms. Case, Ms. Broyles raised the former’s concern regarding a recent media announcement involving closure of restrooms in City parks. Assistant Parks and Recreation Director Todd Feezer clarified the restrooms are closed Nov. 1 thru March 31 but will be open April 1 through Oct. 31.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:18 p.m.

Submitted by,

Carol Intlekofer, MMC  
City Clerk

This notice is available in alternative, accessible formats upon request.

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